

ORION ANALYTICS MASTER SERVICES AGREEMENT

Document ID: EVAL-MSA-002

Section 1. Services

Provider will make the hosted analytics platform available to Customer and its authorized users during the subscription term.

Customer is responsible for user account administration and for the accuracy of data submitted to the service.

Section 3.2 Fees and Late Payment

Marker: EVAL-MSA-3.2.

Subscription fees are invoiced annually in advance unless an order form states a different billing schedule.

Overdue undisputed amounts accrue interest at 1.5% per month or the maximum rate permitted by law, whichever is lower.

Section 4.1 Service Level

Marker: EVAL-MSA-4.1.

Provider will use commercially reasonable efforts to make the production service available 99.9% of each calendar month.

If availability falls below 99.9%, Customer's sole remedy is a service credit equal to 5% of the affected monthly subscription fee.

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Section 7.3 Limitation of Liability

Marker: EVAL-MSA-7.3.

Except for excluded claims, each party's aggregate liability is capped at the fees paid or payable in the 12 months before the event giving rise to the claim.

For claims arising from unauthorized disclosure of Customer Data, Provider's aggregate liability cap is two times the fees paid or payable in that same 12 month period.

Section 9.2 Termination for Cause

Marker: EVAL-MSA-9.2.

Either party may terminate this agreement for material breach if the breach remains uncured 60 days after written notice.

Provider may suspend access sooner if Customer's use creates a security risk or violates applicable law.

Section 11.4 Data Export

Marker: EVAL-MSA-11.4.

For 30 days after termination, Provider will make Customer Data available for export in CSV or JSON format.

After the export period, Provider may delete Customer Data from active systems according to its standard retention schedule.